



## Alternative Dispute Resolution

### Overview

Alternative dispute resolution consists of programs that offer a variety of dispute-solving mechanisms to be used in place of formal, adversarial methods such as litigation. These alternatives are voluntary and usually include the use of a neutral third party to help find mutually acceptable solutions. The use of ADR in government administrative procedures was authorized by the Administrative Dispute Resolution Act of 1990, Public Law 101-552, amended and made permanent by the ADRA of 1996, [Public Law 104-320](#), most of which is codified under [5 USC Chapter 5, Subchapter IV](#). The ADRA authority is codified in [5 USC 572](#). This authority includes the use of ADR in all forms of workplace disputes.

In the field of labor relations, the Federal Labor Relations Authority has several components that offer ADR services. The Office of General Counsel offers ADR services (facilitation, intervention, training, and education) in unfair labor practice proceedings and representation cases (see FLRA regulations at [5 CFR 2423.1](#), et seq.). In situations that call for relationship-building over resolving specific ULP disputes, the OGC may arrange for assistance from the Federal Mediation and Conciliation Service, which provides a variety of relationship-building programs.

The FLRA's Collaboration and Alternative Dispute Resolution Office (CADRO) had offered ADR services in pending ULP, representation, negotiability, and bargaining impasse disputes, and could provide assistance to resolve pending arbitration exceptions. However, the existence of CADRO was not mandated by statute, and [Executive Order 14210](#) directed the elimination of non-statutory functions at the FLRA.

Accordingly, the FLRA issued a [final rule](#) eliminating CADRO, effective Aug. 29, 2025.

This Quick Start Guide covers the following Key Points:

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### Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Hadley** and **Broida** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), and federal employment law expert Pet Broida's treatises, *A Guide to Federal Labor Relations Authority Law and Practice* and *A Guide to Merit Systems Protection Board Law and Practice* (Dewey Publishing Inc.), to which **cyberFEDS®** has exclusive Web rights.

### General provisions

- ADR procedures include, but are not limited to: "conciliation, facilitation, mediation, fact-finding, minitrials, arbitration, and use of ombuds, any combination thereof." [5 USC 571](#) (3).
- Agencies may use ADR "in a controversy that relates to an administrative program." [5 USC 572](#) (a).
- Agencies should consider not using ADR if:
  1. A definitive or authoritative resolution of the matter is required for precedential value, and such a proceeding is not likely to be accepted generally as an authoritative precedent.
  2. The matter involves or may bear upon significant questions of government policy that require additional procedures before a final resolution may be made, and such a proceeding would not likely serve to develop a recommended policy for the agency.
  3. Maintaining established policies is of special importance, so that variations among individual decisions are not increased and such proceeding would not likely reach consistent results among individual decisions.
  4. The matter significantly affects persons or organizations who are not parties to the proceeding.
  5. A full public record of the proceeding is important, and a dispute resolution proceeding cannot provide such a record.
  6. The agency must maintain continuing jurisdiction over the matter with authority to alter the disposition of the matter in the light of changed circumstances, and a dispute resolution proceeding would interfere with the agency's fulfilling that requirement. [5 USC 572](#) (b).
- ADR procedures are voluntary. They "supplement rather than limit other dispute resolution techniques." [5 USC 572](#) (c).

### Neutrals

The following points on neutrals in ADR proceedings are governed by [5 USC 573](#):

- ADR procedures are overseen by neutrals, who act as mediators, conciliators, facilitators or similarly to help the parties to a dispute come resolution. They may be federal employees or others. They must be acceptable to all parties to a dispute, and must have no conflict of interest, unless it is disclosed in writing to all parties.
- Neutrals serve at the will of the parties.
- The Interagency Alternative Dispute Resolution Working Group is charged with encouraging the use of ADR by agencies, and with expediting the use of neutrals. See the Working Group's [website](#).

- Agencies may use the services of employees of other agencies as neutrals through interagency agreements, which may provide for full or partial reimbursement of costs, or may contract for the services of private individuals.

## Confidentiality

The following points on confidentiality in ADR proceedings are governed by [5 USC 574](#):

- Both disputing parties and neutrals are bound to maintain the confidentiality of all ADR communications unless all parties to a communication agree in writing to forego confidentiality. This applies both to voluntary disclosure and to compulsory disclosure, as through a discovery process.
- If requests for disclosure of an ADR communication, as in a discovery process, are made to a neutral by way of discovery or other legal process, the neutral must make a reasonable effort to notify every party involved in the communication. "Any party or affected nonparty participant who receives such notice and within 15 calendar days does not offer to defend a refusal of the neutral to disclose the requested information shall have waived any objection to such disclosure." [5 USC 574](#) (e).
- Parties to a dispute may agree before ADR proceedings to an alternative confidentiality arrangement and notify the neutral in writing, but it may not be more restrictive than the arrangements outlined in the statute under [5 USC 574](#) (a).
- Communications disclosed in violation of confidentiality are not admissible in adjudicatory proceedings.
- Exceptions may be made to confidentiality because of statutory requirements that a communication be disclosed, "but a neutral should make such communication public only if no other person is reasonably available to disclose the communication."
- A court may order disclosure of a confidential communication if this is necessary to:
  1. Prevent a manifest injustice.
  2. Help establish a violation of law.
  3. Prevent harm to the public health or safety.
- The need to disclose confidential communications must be found by the court to be so important that it outweighs the damage that may be done to the ADR program by the disclosure of confidential information.

## MSPB appeals

- The Merit Systems Protection Board's Mediation Appeals Program offers the services of the board's trained and certified mediators as an alternative to the formal appeal processes and procedures of MSPB's regulations. Mediators facilitate a discussion between the parties to help them identify issues and barriers to agreement that will aid in resolving their disputes and settling the appeal quickly, economically, and to the benefit of all concerned. MAP is free, easy, and confidential. Both parties must agree to its use before the appeal will be accepted for MAP, and both must agree on its resolution before any settlement is concluded. Unlike the traditional appeal process, the parties control the result of the case under the skilled guidance of the mediator, who will play no role in deciding the appeal, should an agreement not be reached. Find more information about MAP on the MSPB's [website](#).
- **Broida:** The MSPB has a "mediation appeals program" which is described on the board's website and is referenced in acknowledgment orders issued after appeals are filed. MAP uses board employees (not all of whom are administrative judges) who receive mediation training and who conduct in-person mediations to facilitate settlements. MAP mediators usually come from offices of the board other than the regional or field office adjudicating the appeal. [Broida Guide to MSPB Law: Settlement Resources; Mediation Appeals Program](#).
- When an appellant and an agency mutually agree in writing to attempt resolution with ADR, the time limit for filing an appeal with the Merit Systems Protection Board is extended by an additional 30 days -- for a total of 60 days. [5 CFR 1201.22](#) (b)(1).
- Whenever an appeal is accepted into the MSPB's Mediation Appeals Program, the processing of the appeal and all deadlines are suspended until the mediator returns the case to the judge. This provision does not apply where the parties enter into other forms of alternative dispute resolution. [5 CFR 1201.28](#) (d).

## Labor relations

- **Broida:** In late 1998, the FLRA instituted ADR as a regulatory component of its ULP case processing system. In 2008 the General Counsel issued regulations that emphasized the primary role of the GC as the investigator and prosecutor of unfair labor practices. Settlement efforts would be pursued by the GC after the investigation phase, after the determination of the merits of the charge. [Broida Guide to FLRA Law and Practice: Alternative Dispute Resolution -- Precomplaint Settlements](#).
- The FLRA amended [5 CFR Part 2423](#) to restore the Office of General Counsel's role in facilitating the resolution of disputes and in training and educating FLRA customers. The revisions are intended to reestablish the OGC's leadership role in providing guidance in alternative dispute resolution techniques to both parties in order to strengthen labor-management relationships and resolve disputes short of litigation. [Summary of Final Rule, Federal Register, Volume 75, Number 54 \(03/22/10\)](#).
- The purpose of the FLRA General Counsel's ADR services is to develop collaborative labor-management relationships, avoid unfair labor practice disputes, and informally resolve unfair labor practice disputes. [5 CFR 2423.2](#).
- Prior to the filing of a ULP charge by a party, at the request of both parties, a representative of OGC's regional office may assist the parties in resolving the dispute. [5 CFR 2423.1](#).
- Alternative dispute services available from the OGC, on a voluntary basis, include facilitation, intervention, training and education. [5 CFR 2423.2](#).
- After the initiation of an investigation, as part of processing a ULP charge, the OGC may suggest to the parties that they may benefit from ADR services. [5 CFR 2423.2](#).
- In its [final rule](#) eliminating CADRO, the FLRA stated that while there will no longer be a separate, dedicated ADR office at the FLRA, the FLRA's remaining components will continue to use ADR procedures, when appropriate. [Summary of Final Rule, Federal Register, Volume 90, Number 166 \(08/29/25\)](#).

- **Broida:** The FLRA determined that EEO post-complaint settlement discussions are formal meetings requiring notice to the union and an opportunity for the union to be represented at the discussion of a unit employee's complaint. *Marine Corps Logistics Base*, [97 FLRR 1-1026](#); [52 FLRA 1039](#) (FLRA 1997). [Broida Guide to FLRA Law and Practice: EEO Proceeding -- Post-Complaint Settlement Discussions and Adjustments; Mediation](#).

## EEO complaints

- Agencies are required by Equal Employment Opportunity Commission regulation to establish ADR programs to resolve EEO disputes. [29 CFR 1614.102](#) (b)(2).
- ADR is encouraged by the EEOC at both the informal (precomplaint) and formal (investigatory) stages of the federal EEO process. [29 CFR 1614.105](#) (f) and [29 CFR 1614.108](#) (b).
- "Early resolution of disputes through EEO ADR can make agency resources available for mission-related programs and activities. The agency can avoid costs such as court reporters and expert witnesses." [EEOC MD-110, Chapter 3](#).
- **Hadley:** Agencies and complainants can both benefit from ADR because it "offers the parties the opportunity for an early, informal resolution of disputes in a mutually satisfactory fashion." ADR usually costs less and uses fewer resources than the traditional administrative or adjudicative processes. ADR can also enhance employee morale because agency management is viewed as open-minded and cooperative in seeking to resolve disputes through ADR. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Alternative Dispute Resolution](#).
- **Hadley:** ADR can be offered at any stage of the complaint process, but the emphasis is on ADR during the EEO precomplaint stage. This is appropriate because the "parties have expended fewer resources at the precomplaint stage, making resolution more feasible from a cost perspective." Further, "the longer the parties are engaged in a dispute, the more polarized and firmly entrenched they often become in the views of the case." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Alternative Dispute Resolution](#).
- Although agencies are required by EEOC regulation to have ADR programs, they are not required to offer ADR in every informal and formal complaint brought to an agency EEO program. This is anchored in the ADRA. [5 USC 572](#) (b).
- The agency's right to decline to offer ADR in specific cases is very broad, but not unlimited. "Agencies may decline to offer EEO ADR for particular issues related to the agency's mission, such as security clearances, but not for broad issues such as promotions or performance evaluations. Agencies have discretion to determine whether a given dispute is appropriate for EEO ADR. However, agencies may not decline to offer EEO ADR to particular cases because of the bases involved (that is, race, color, religion, sex, national origin, age, disability, genetic information, or retaliation)." [EEOC MD-110, Chapter 3](#).
- **Hadley:** Agencies must have ADR programs for EEO complaints, but agencies are not required to offer ADR in every case. However, an agency may not preclude entire bases of discrimination from its ADR program. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Alternative Dispute Resolution](#).
- **Hadley:** EEO counselors often provide complainants with their first information about the agency's ADR program. Counselors must be able to inform the complainant how the agency's program works; about their opportunity to participate in the program; and about their right to file a formal complaint if ADR does not achieve a resolution. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Alternative Dispute Resolution](#).
- When an aggrieved individual agrees to participate in ADR, the precomplaint processing period is 90 days. If the dispute is not resolved in 90 days, the aggrieved must be advised of the right to file a formal complaint and that the regulatory EEO process will continue. [29 CFR 1614.105](#) (f). The agency must advise the aggrieved person not later than the 90th day after the EEO counselor contact of their right to file a formal complaint. However, resolution efforts may continue so long as the parties and the neutral agree. [EEOC MD-110, Chapter 3](#).
- **Hadley:** An offer of ADR cannot be conditioned on the complainant's withdrawing her request for counseling. In one case, the EEOC found a withdrawal form signed by the complainant was invalid because MD-110 requires that if ADR is unsuccessful, the complaint be returned to a counselor for issuance of a notice of final interview. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Voluntariness](#), citing *Toth v. U.S. Postal Service*, [102 LRP 37324](#), EEOC No. 01A1333 (EEOC OFO 2002).
- If ADR begins after a formal complaint is filed, the time period for processing the complaint may be extended by agreement for no more than 90 days. If the dispute is not resolved, the complaint must be processed within the extended time period. [EEOC MD-110, Chapter 3](#).
- Since ADR is embedded in the legal EEO process, the same rules apply when it comes to representation. All parties must be permitted to bring a representative to an ADR forum if they choose to do so. However, EEO Officials are not eligible to represent aggrieved individuals/complainants in the EEO ADR process. [EEOC MD-110, Chapter 3](#).
- No aspect of ADR may be made the subject of an EEO complaint. This includes anything said or done during attempts to resolve the complaint through ADR, an agency's decision not to offer EEO ADR for a particular case, and an agency's failure to provide a neutral. [EEOC MD-110, Chapter 3](#).
- The EEOC advocates implementing an independent ADR office as a best practice. "A primary advantage of an Independent ADR Office is that the agencies can resolve disputes that do not belong in the EEO process, which then permits the EEO staff to focus on the traditional EEO complaint process." [EEOC MD-110, Chapter 3](#).
- "While employees may go directly to the Independent ADR Office without first meeting with the EEO Counselor, an independent ADR office is not an office for the purpose of initiating the EEO process. As a result, during the first contact with an Independent ADR Office, the

aggrieved individual must be informed of the need to contact an EEO Counselor and regulatory time frames, should they wish to protect their rights to take the matter through the traditional EEO process." [EEOC MD-110, Chapter 3.](#)

- The ADR office is no longer independent when an agency permits ADR office employees to perform any collateral EEO duty, no matter how small or infrequent. Therefore any contact by an aggrieved party with the ADR office staff will initiate the traditional EEO process, including EEO counseling and Form 462 reporting. "The agency's ADR staff member must provide to the aggrieved person the same information EEO Counselors are required to provide to the aggrieved persons, meet all training requirements of an EEO Counselor, and fully carry out the EEO Counselor's roles and responsibilities. This includes providing the EEO Counselor's report to the EEO Office for issuance in a timely manner. The ninety (90) day pre-complaint processing period will begin from the first contact with the ADR office staff member." [EEOC MD-110, Chapter 3.](#)
- For discussion on the EEOC's report on Alternative Dispute Resolution in the Federal Sector, including best practices, see [EEOC: Avoid practices that 'delegitimize' ADR.](#)

## Other Resources

- Administrative Dispute Resolution Act of 1996, [Public Law 104-320](#)
- [MSPB Mediation Appeals Program Agreement to Mediate](#)
- [FLRA Collaboration and Alternative Dispute Resolution Office](#)
- [EEOC Management Directive 110, Chapter 2: Equal Employment Opportunity Pre-Complaint Processing](#)
- [EEOC Management Directive 110, Chapter 3: Alternative Dispute Resolution](#)
- Interagency Alternative Dispute Resolution Working Group [website](#)
- [Checklist Plus+: Resolve Disputes with ADR](#)
- [Checklist Plus+: Working with Settlements](#)
- [Quick Start Guide: Settlements -- EEO](#)
- [Quick Start Guide: Settlements: Challenges and Breaches -- ER](#)
- [Quick Start Guide: Settlements: Content and Interpretation -- ER](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 02 -- The Precomplaint Process -- Counseling, Subchapter 05 -- Duties of EEO Counselor, Section A -- Advising Complainants on Procedures, Subsection 03 -- Alternative Dispute Resolution](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 02 -- The Precomplaint Process -- Counseling, Subchapter 11 -- Alternative Dispute Resolution, Section C -- Developing ADR Programs, Subsection 01 -- Factors to Consider](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 02 -- The Precomplaint Process -- Counseling, Subchapter 11 -- Alternative Dispute Resolution, Section A -- Core Principles, Subsection 01 -- Voluntariness](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 02 -- The Precomplaint Process -- Counseling, Subchapter 11 -- Alternative Dispute Resolution, Section A -- Core Principles, Subsection 02 -- Neutrality](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 02 -- The Precomplaint Process -- Counseling, Subchapter 11 -- Alternative Dispute Resolution, Section A -- Core Principles, Subsection 03 -- Confidentiality](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 02 -- The Precomplaint Process -- Counseling, Subchapter 11 -- Alternative Dispute Resolution, Section A -- Core Principles, Subsection 02 -- Enforceability](#)

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